

Whether foreigners residing in Malaysia can file for divorce in Malaysia?



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INTRODUCTION

Jurisdiction is the foundation of every divorce proceeding. In Malaysia, the right to petition for divorce is not determined solely by the nationality but by legal concepts such as domicile. This raises an important question: ***Can a foreigner residing in Malaysia file for divorce proceedings in the Malaysian courts?***

Given Malaysia's growing expatriate population and the increasing prevalence of cross-border marriages, understanding the jurisdictional requirements under Malaysian family law is crucial. This article explores when and how foreigners residing in Malaysia may seek relief before the Malaysian courts. For non-Muslims, breakdown of marriages and welfare of children are governed by the Law Reform (Marriage and Divorce) Act 1976 ("LRA"), Married Women Act 1957, Married Women and Children (Maintenance) Act 1950, Married Women and Children (Enforcement of Maintenance) Act 1968, Guardianship of Infants Act 1961 and Child Act 2001.

Monogamous or polygamous marriage?

Before considering whether a foreigner residing in Malaysia may file for divorce, it is important to first understand the nature of marriages that are recognised by Malaysian law. **Section 3(1) of LRA** provides that LRA applies to all persons domiciled in Malaysia and to all persons domiciled in Malaysia but are resident outside of Malaysia. Hence, the Court will only have jurisdiction to hear a divorce petition if the parties are domiciled in Malaysia. **Section 5 of LRA** establishes a fundamental principle where every marriage solemnised in Malaysia under the LRA shall be monogamous. This means that neither party to a marriage may contract into another marriage during the subsistence of the existing marriage.

When can Malaysian Courts grant Divorce?

Jurisdiction means the legal power invested in the court to hear and decide a matter that is brought to court. The general rule is pursuant to **Section 48 (1) of LRA**, the power of the court to grant any decree of divorce is only when (a) the marriage has been registered or deemed to be registered under this act or (b) the marriage between the parties was contracted under a law providing that, or in contemplation of which, marriage is monogamous; and (c) where the domicile of the parties to the marriage at the time when the petition is presented is in Malaysia.

Hence, the Court may grant a divorce *only if* the marriage is registered under the LRA or was contracted under a law recognising monogamous marriage, and the parties is domiciled in Malaysia at the time the petition is filed.

THE MEANING OF DOMICILE



Domicile means a place of residence, a house or home, the place where one has permanent residence in which, if absent, he has the intention of returning.

The domicile of a married women is that of her husband while the marriage subsists, even though the parties are living apart as held in **Charnley v Charnley and Betty [1960] 1 MLJ 29**.

This requirement was clearly demonstrated in **Re Yamamoto Ryoji & Anor [2021] 8 MLJ 386 (HC)** where the parties filed a joint divorce petition in Malaysia. However, at the time of filing, both parties were residing and working in Japan. The wife had domiciled in Japan upon marriage, and they were only in Malaysia temporarily for the Chinese New Year holiday. It was held that the Malaysian court had no jurisdiction because the parties were not domiciled in Malaysia when the petition was presented. Jurisdiction cannot be created by consent, even if both parties agree to file in Malaysia, such agreement cannot cure the absence of domicile. Thus, it can be understood that a foreigner may file for divorce in Malaysia *only if both parties are domiciled in Malaysia*.

Nevertheless, the *exception* is stipulated under **Section 49(1) of LRA** where the court may exercise jurisdiction over a divorce petition filed by a wife even if the husband is not domiciled or a resident in Malaysia, provided that: (a) wife has been deserted or the husband has been deported, and he was domiciled in Malaysia before the desertion or deportation; or (b) wife has been ordinarily a resident in Malaysia for at least two years immediately before filing the petition. Hence, this *additional jurisdiction allows a wife to petition for divorce in Malaysia*.

Other Requirement? : The Two-Year Rule

However, petition for divorce cannot be filed before the expiration of two years from the date of the marriage of the parties as pursuant to **Section 50(1) of LRA**. Notwithstanding the two-year requirement, **Section 50(2) of LRA** allows the court to permit a divorce petition to be filed within two years of marriage if there are exceptional circumstances or hardship suffered by the petitioner. In deciding the application, the court must consider the interests of any child of the marriage and whether there is a reasonable possibility of reconciliation between the parties.

As an illustration, in **Kiranjit Kaur a/p Kalwant Singh v Chandok Narinderpal Singh [2010] 3 CLJ 724** where the court found that the husband's online blog posts, which contained slanderous and humiliating statements about the wife had caused serious and ongoing harm to her reputation and emotional well-being. The impact was borderless and continuing even if later removed. That conduct amounted to exceptional hardship as under **Section 50(2) of LRA**.

Other Requirement? : Marriage Tribunal

Section 106 of LRA provides the mandatory requirement for any matrimonial difficulties is to be first referred to the conciliatory body. However, there are exceptions to this general rule namely as stipulated under **Section 106 (1)(i) – (vi) of LRA**.

Conclusion

In summary, *a foreigner residing in Malaysia may file for divorce in Malaysia*. The key requirement is domicile. The Malaysian courts will only have jurisdiction if the marriage is monogamous and registered (or deemed registered) under the Act, and the parties are domiciled in Malaysia at the time the petition is presented, subject to limited statutory exceptions such as those under **Section 49**. Parties must comply with procedural requirements, including the two-year rule and reference to a conciliatory body, unless a recognised exception applies. Ultimately, the right of a foreigner to seek divorce in Malaysia depends not on citizenship, but on satisfying the statutory framework governing jurisdiction and matrimonial relief.

References

1. *Law Reform (Marriage and Divorce) Act 1976*
2. *Charnley v Charnley and Betty [1960] 1 MLJ 29*
3. *Re Yamamoto Ryoji & Anor [2021] 8 MLJ 386 (HC)*
4. *Kiranjit Kaur a/p Kalwant Singh v Chandok Narinderpal Singh [2010] 3 CLJ 724*